

THE KING'S BENCH (FAMILY DIVISION)

_____ **Centre**

BETWEEN:

Petitioner/Applicant

- and -

Respondent

-
-

FOAEAA ORDER - AUTHORIZATION

Locate/Financial

Pursuant to section 10 of the *Family Orders and Agreements Enforcement Assistance Act* (Canada) authorizing a court official to request information for the **enforcement of a support order**

(name, address, e-mail, and telephone number of party filing)

THE KING'S BENCH (Family Division)

Centre

THE HONOURABLE)
) , the day of , 20__
)

BETWEEN:

Petitioner/Applicant

– and –

Respondent

ORDER

- 1.0** This matter having proceeded at the Law Courts Complex, 408 York Avenue, Winnipeg, Manitoba, R3C 0P9, at the request of the _____.
- 2.0** On the application of _____ made
(Full name of party making the application)
pursuant to section 7 of the *Family Orders and Agreements Enforcement Assistance Act* (Canada), in relation to the enforcement of a support order provision set out in the order pronounced _____
(specify date)
by _____.
(specify Judge, Court, and province/territory/country)
- 3.0** THIS COURT is satisfied that the sole purpose of the application is to obtain information to enforce a support order and this order is not likely to jeopardize the safety or security of any person.

(Strike out paragraphs 4 and 5 if the other party was given notice)

- 4.0** This application was made *ex parte* (without notice to the other party).
- 5.0** THIS COURT is also satisfied that in relation to the enforcement of a support order, reasonable steps have been taken to locate the person identified in the affidavit in support of the section 7 application in respect of whom the applicant is seeking to have a support amount enforced and that the person has not been located.
- 6.0** THIS COURT ORDERS pursuant to section 10 of the *Family Orders and Agreements Enforcement Assistance Act* (Canada) that the Registrar of the Court of King's Bench of Manitoba is authorized to make an application to the Minister of Justice Canada pursuant to section 12 of the *Family Orders and Agreements Enforcement Assistance Act* (Canada) to search for and release only the following information below that can be found in federal information banks designated under section 2 of the Release of Information for Family Orders and Agreements Enforcement Assistance Regulations, SOR/2023-125:

(Strike out any of the following clauses (a), (b), or (c), that are not applicable)

- a) The address of _____

(Full name of person against whom the support order is enforceable)
- b) The name and address of the employer of _____

(Full name of person against whom the support order is enforceable)
- c) The information of _____

(Full name of person against whom the support order is enforceable)

that is set out in the following document(s) for the taxation year preceding the taxation year in which this application is made or if it not available, for the taxation year preceding that year:

Federal Tax Form
<i>Strike out any the following clauses i), ii), or iii), if not applicable</i>
i) Income Tax and Benefits Return (T1), other than their Social

	Insurance Number
ii)	Notice of Assessment and Notice of Reassessment, other than their Social Insurance Number
iii)	Name and address of each person and entity from which they received income and the amount of income received from each

(Strike out paragraph 7 if this order is made with notice)

7.0 THIS COURT ORDERS pursuant to section 11 of the *Family Orders and Agreements Enforcement Assistance Act* (Canada) that a notice under section 12.1 of the *Family Orders and Agreements Enforcement Assistance Act* (Canada) and a copy of this Order shall not be sent by the Minister of Justice Canada to the person whose information is being sought.

8.0 THIS COURT ORDERS pursuant to subsection 13(2) of the *Family Orders and Agreements Enforcement Assistance Act* (Canada) that the information received by the Registrar of the Court of King's Bench of Manitoba from the Minister of Justice Canada and given to the court shall be sealed until further order of the court.

9.0 THIS COURT ORDERS that the issue of disclosure of the information is adjourned pending receipt of the information by the court.

(Strike out paragraph 10 if this order is made without notice)

10.0 THIS COURT ORDERS pursuant to *The Court of King's Bench Act* and Rules that a copy of this Order shall be served on the Respondent by regular letter mail, courier or fax addressed to {specify name, additional details and/or address in full}, within 20 days of the date of signing.

(*Date of signature*)

(*Signature of judge*)